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SCOTTSDALE

INSURANCE COMPANY v. CITY OF SOUTH GATE

CASE NO.: 25NWCP00565

HEARING: 07/09/2026 @ 9:30 AM

#13

TENTATIVE ORDER

Petitioner Scottsdale Insurance Company's petition for relief from the claim-presentation requirement is GRANTED.

Petitioner to give notice.

Petitioner Scottsdale Insurance Company (Petitioner) moves for relief from the claim-presentation requirement under Government Code section 945.4.

Background

On December 22, 2025, Petitioner filed this Petition for Relief from Government Claim Presentation Requirements to permit Petitioner to file a civil action against Respondent City of South Gate (Respondent) and Does 1 through 10 arising from an incident on January 24, 2025. Specifically, "[o]n or about January 24, 2025, Petitioner sustained damages arising out of the acts and/or omissions of employees and agents of Respondent...when its employee who

was driving lost control of his vehicle and impacted the [Petitioner's] insured's building at 8479 California Ave South Gate, CA 90280. As a result, [Petitioner], a subrogating insurer, paid a claim in the amount of \$104,099.36 for which it now seeks subrogation against Respondent." (Pet., 1:27-28-2:1-4.)

Legal Standard

"[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented until a written claim has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board." (Munoz v. State of Cal. [Munoz] (1995) 33 Cal.App.4th 1767, 1777; Gov. Code, § 945.4.) A claim relating to a cause of action for injury to person or personal property must be presented to the public entity not later than six months after the accrual of the cause of action. (Gov. Code, § 911.2; Munoz, supra, 33 Cal.App.4th at p. 1777.)

If a claimant fails to present a claim within the statutory period, the claimant may apply "within a reasonable time not to exceed one year after the accrual of the cause of action" to the public entity for leave to present a late claim. (Gov. Code, § 911.4, subd. (a)-(b).) If the public entity denies leave to present a late claim, a claimant may petition the Court under Government Code section 946.6 for relief from the requirements of Government Code section 945.4. (Munoz, supra, 33 Cal.App.4th at p. 1777.)

A petition under Government Code section 946.6 must be "filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6." (Gov. Code, § 946.6, subd. (b); see also City of Los Angeles v. Superior Court (1993) 14 Cal.App.4th 621, 627.) This requirement is mandatory. (Lineaweaver v. S. Cal. Rapid Transit Dist. (1983) 139 Cal.App.3d 738, 741.)

If the Government Code section 946.6 petition is timely filed, the Court may relieve a claimant from the requirements of section 945.4 if it makes certain findings, including: (1) the claimant made a timely application to the public entity for leave to present a late claim; (2) the application was denied; and (3) "[t]he failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the

court relieves the petitioner from the requirements of Section 945.4.”

(Gov. Code, § 946.6, subd. (c).) In determining whether relief is warranted under Government Code section 946.6, the Court considers the petition, any affidavits submitted in support of or in opposition to the petition, and any other evidence presented at the hearing. (Gov. Code § 946.6, subd. (e); Munoz, supra, 33 Cal.App.4th at p. 1778.)

“Once it has been shown that an application for leave to file a late claim was made within a reasonable time and that the failure to present a timely claim was through mistake, inadvertence, surprise or excusable neglect, the burden shifts to the public entity to establish by a preponderance of the evidence that it would be prejudiced if the court relieves the petitioner from the six-month claim presentation requirements.” (Renteria v. Juvenile Justice, Department of Corrections & Rehabilitation (2006) 135 Cal.App.4th 903, 909-10.)

“Government Code section 946.6 is a remedial statute intended to provide relief from technical rules which otherwise provide a trap for the unwary. The remedial policy underlying the statute is that wherever possible cases should be heard on their merits. Thus, a denial of such relief by the trial court is examined more rigorously than where relief is granted and any doubts which may exist should be resolved in favor of the application.” (Munoz, supra, 33 Cal.App.4th at 1778, citations omitted.)

Discussion

Petitioner seeks leave to file a late claim against Respondent based on an incident occurring on January 24, 2025. This petition is unopposed.

First, the Court finds that Petitioner’s application and petition are timely. Petitioner filed its Application for Leave to Present a Late Claim (Application) pursuant to Government Code section 911.4 on September 15, 2025, which is “within a reasonable time not to exceed one year after the accrual of the cause of action” to the public entity for leave to present a late claim. (Gov. Code, § 911.4, subd. (a)-(b).) The Application was deemed denied on November 1, 2025 because Petitioner did not receive a written denial of the claim after 45 days. (See Gov. Code, § 911.6, subd. (c).) Petitioner filed the instant petition on December 22, 2025, which is within six months of the date the Application was deemed denied.

Next, Petitioner argues that its failure to present a timely claim was through mistake, inadvertence, surprise, or excusable neglect. Petitioner puts forth the declaration of employee Selisa Schwarz. Ms. Schwarz states that “[o]n June 25, 2025, [she] prepared, on behalf of Petitioner, a prelitigation claim to be mailed to the City of South Gate.” (Schwarz Decl., ¶ 4.) Petitioner includes a copy of this claim, which was mailed via certified mail. (Schwarz Decl., ¶ 4., Exh. A.) Ms. Schwarz explains that “due to an inadvertent omission of information in the address, the claim was not delivered to the Respondent and was returned to Petitioner on August 18, 2025, by the United States Postal Service-after the deadline had passed.” (Schwarz Decl., ¶ 5.) Petitioner presents a copy of the returned envelope. (Schwarz Decl., ¶ 5, Exh. B.)

Here, the Court finds that Petitioner adequately establishes that the failure to present a timely claim was a result of inadvertence or excusable neglect. Respondent does not oppose this petition to show any prejudice.

Accordingly, Petitioner Scottsdale Insurance Company’s petition for relief from the claim-presentation requirement is GRANTED. Petitioner may serve and file a complaint.